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Guidance for Emergency Endangered Species Act Consultation for Projects Pursuant to Emergencies Declared via Executive Orders, Secretary Orders, or Presidential Proclamations

UNDERTAKING EMERGENCY CONSULTATION FOR PROJECT PURSUANT TO EXECUTIVE ORDERS, SECRETARY ORDERS, OR PRESIDENTIAL PROCLAMATIONS

On July 8, 2025, Acting Associate Chief of the Forest Service Christopher French directed all regional foresters to follow procedures for expedited consultations under the Endangered Species Act (ESA) emergency consultation regulations (50 CFR 402.05) and associated Agency guidance for certain types of projects. The purpose of this document is to provide Agency guidance with respect to emergency consultation under the ESA.

I. ACTIVITIES

LOCATION OF ACTIVITIES

For fuels, forest health, and timber projects, if at least 50% of the project area falls within the Secretary's designated emergency situation determination area (Figure 1; SM 1078-006), the USFS strongly encourages the use of emergency consultation to comply with the ESA. Fuels, forest health, and timber projects that fall outside the Secretary's emergency situation determination area are still eligible to use emergency consultation procedures as directed by EO 14225, however there is more discretion in these instances to use other forms of ESA compliance so long it does not delay project implementation. For energy and minerals projects (e.g., pursuant to EO 14156), regardless of where they occur, staff should use the method of ESA compliance that will yield the greatest efficiency. In most situations, this would likely entail procedures for expedited consultations under the emergency consultation regulations and this guidance.

TYPES OF ACTIVITIES

Projects involving one or more of the following categories, or similar categories, may use the emergency consultation procedures described here.

EO 14156 - Energy

- Oil and Gas Exploration and Extraction
- Energy Development Facilities (except wind and solar)
- Transmission Facilities and Infrastructure
- Pipelines
- Critical Mineral Exploration and Extraction

EO 14225 - Timber

- Tree salvage
- Harvest of trees damaged by natural processes (wind, ice, fire, insects, etc.)
- Commercial and noncommercial harvest
- Reforestation



Hazard tree removal
Hazardous fuel removal
Restoration of water sources or infrastructure
Actions taken to reduce wildfire risk

II. ENGAGING THE SERVICES FOR TECHNICAL ASSISTANCE

If time allows, before submitting a request for emergency consultation on the project, call or meet with your consulting Service office to discuss the project (i.e., technical assistance). Technical assistance informs project planning and implementation before, during, and after 7(a)(2) consultation. It does not have a particular initiation point or timeline for conclusion.

Technical assistance may take a variety of forms. Technical assistance may include helping to develop a species list or assisting in deconstructing the action. The Services may also provide guidance on a variety of topics, such as: (1) assisting with project effects determinations and offering suggestions for surveys, (2) providing information on potentially affected species or critical habitat, (3) providing information on candidate species, (4) suggesting conservation measures to avoid or reduce impacts to species and their critical habitats, (5) providing guidance on the use of programmatic options, and (6) providing post-consultation guidance on implementation of programmatic consultations, conservation measures, or resource protection measures.

At this stage a general idea of where the project will occur, what on-the-ground actions and conservation measures are likely to be part of the action, the timing of those on-the-ground actions (project schedule), and the species/critical habitat that may be affected will be needed. This information should be gathered into a preliminary biological assessment, as described below. The originating unit will want to alert the Services if this project is likely to be submitted under emergency consultation procedures, if true.

III. DEVELOPMENT OF A PRELIMINARY BIOLOGICAL ASSESSMENT

The development of a preliminary biological assessment (BA) will help to focus your discussion with the Services and ensure that you have correct information to begin informal coordination (aka technical assistance) when requesting emergency consultation pursuant to 50 CFR 402.05(a). When using emergency consultation procedures, the originating unit must still comply with section 7(a)(2) of the ESA (i.e., engage in consultation and avoid the likelihood of jeopardizing listed species or destroying or adversely modifying critical habitat). It is important that as much information that is available (similar to 50 CFR 402.14) is shared during informal coordination with the Services so that they can assess when an action may jeopardize a species or destroy or adversely modify critical habitat.

Below is information recommended to be included as part of a preliminary BA. We anticipate these preliminary BAs will be less than 10 pages; however, we are not precluding units from writing a complete BA (50 CFR 402.14) if time allows.

The following sections and analyses will be important to include:

1. A clear and concise description of the proposed action (~2 *pages*) including:
 - a. Purpose, including briefly, how the project meets the criteria (50 CFR 402.05) to be considered an emergency (Executive Orders, Secretarial/Chief's Memos, emergency s7 regulations) (the Why).
 - b. Timing of on-the-ground activities (the When).
 - c. Location of on-the-ground activities (the Where).
 - d. Activities and their implementation methods (the What and How).
2. Species/Critical habitat (general not individual units) list and concise determinations for each (<1 *page*).

- a. Include, briefly, a list of species or critical habitat for which a “No Effect” determination was made and that we are not requesting consultation on those species. If ALL ESA-listed species and critical habitats in the action area received “No Effect” determinations consultation is not required, including emergency consultation.
- b. If some species or critical habitat effects will be covered under an existing programmatic list those species and briefly describe how the project fits within the programmatic’s analyses (conformance check).
- c. For the remaining species or critical habitats provide a concise determination for each and identify any relevant species/critical habitat conservation measures and recovery actions included in the proposed action.
 - i. Relate proposed conservation measures to those provided by the Services during technical assistance or from the official species list. If the Services provided measures that were not included briefly explain why they could not be implemented.
3. A map or complete, but concise, description of the project action area (sending GIS layers may be preferred, talk to your FWS counterparts) –(*~1 page*).
4. Species and habitat information (Environmental Baseline).
 - a. Information regarding the *current* presence/absence/abundance of listed species and critical habitat in the action area, if known.
 - b. Information regarding the *current* condition of critical habitat in the action area.
5. An analysis of anticipated effects to ESA-listed species and critical habitats (*~2 pages*). We recommend a tabular format.
 - a. Focus on effects that disrupt normal behavior such that it results in a likelihood of reduced individual fitness, injury, or death.
 - b. For critical habitat, focus on those effects that would impact one or more physical and biological features of designated critical habitat.
 - c. Include clear, concise descriptions of the cause-and-effect relationship between the action and its impact. Do not include effects that are not reasonably certain to occur.
 - d. Describe how conservation measures and design features relate to the likelihood of negative (avoided, minimized) and beneficial effects (anticipated).
 - e. Include brief description of short and long-term benefits to the species and/or critical habitat, if expected.

The following sections may be voluntarily included in the preliminary biological assessment, but are not required:

1. Species Status Section (keep concise and incorporate information by reference)
2. Consultation History (briefly)
3. Detailed analyses of de minimis impacts or speculative effects (these would rarely be appropriate to include).
4. A list of past projects in the area (this would rarely, if ever, be value-added in a BA)
5. Cumulative effects

IV. REQUESTING EMERGENCY CONSULTATION

REQUESTING EMERGENCY CONSULTATION WITH THE FWS:

When you are ready to request emergency ESA section 7 consultation as outlined in 50 CFR 402.05(a), start by entering the project into IPaC using information from your preliminary BA (or use IPaC's BA builder). Check the "emergency consultation" box under "special project authorities", select "yes" to request emergency consultation procedures, select the appropriate executive order under which the project fits, and complete the questions that follow including how long you have to informally coordinate with the FWS (50 CFR 402.05(a)). For reporting purposes, ensure Forest Service is selected for the Action Agency and the National Forest name is included in the project title.

IPaC allows for documents to be added to your project, and we recommend that your preliminary BA is uploaded to IPaC in addition to being emailed to your servicing FWS office. IPaC will issue an Official Species List that contains conservation measure recommendations (aka design guidelines) and a response letter confirming receipt of your "request to consult, pursuant to the emergency Endangered Species (ESA) section 7 consultation procedures". Based on the amount of time available to informally coordinate with the FWS pursuant to 50 CFR 402.05(a), and other factors, additional informal coordination (technical assistance) may occur with the servicing FWS office. The servicing FWS office may provide additional recommended conservation measures to help avoid or minimize effects to listed species or critical habitat.

If the project's timeline allows flexibility to informally coordinate with the FWS prior to implementation, it is possible that ESA consultation can be completed prior to project commencement (see completing consultation prior to project implementation). We recommend maintaining regular communication with your servicing FWS office prior to project implementation. If consultation cannot be completed, continue to work with the FWS during the informal coordination process under 50 CFR 402.05(a) to streamline subsequent compliance when consultation is completed pursuant to 50 CFR 402.05(b) as soon as practicable after the emergency is under control.

REQUESTING EMERGENCY CONSULTATION WITH THE NMFS:

The originating FS unit must submit an emergency consultation request notification to the consulting NMFS office via email to initiate emergency consultation. This initiation request must identify which Executive Order the project is supporting. NMFS will provide an email response, which will include recommended conservation measures, if applicable.

V. COMPLETING CONSULTATION UNDER EMERGENCY CONSULTATION PROCEDURES

Procedurally, an emergency consultation is treated like any other consultation with the standard applicable time frames and informational requirements of 50 CFR 402.13 or 402.14. However, we must provide additional information to complete consultation (50 CFR 402.05(b)) as soon as practicable after the emergency is under control: (1) a description of the emergency actions; (2) a justification for the expedited consultation; and (3) an evaluation of the impacts of the emergency response on affected species and critical habitats, including documentation of how the Services' conservation measure recommendations were implemented and the results of implementation in minimizing and avoiding impacts to listed species and critical habitats.

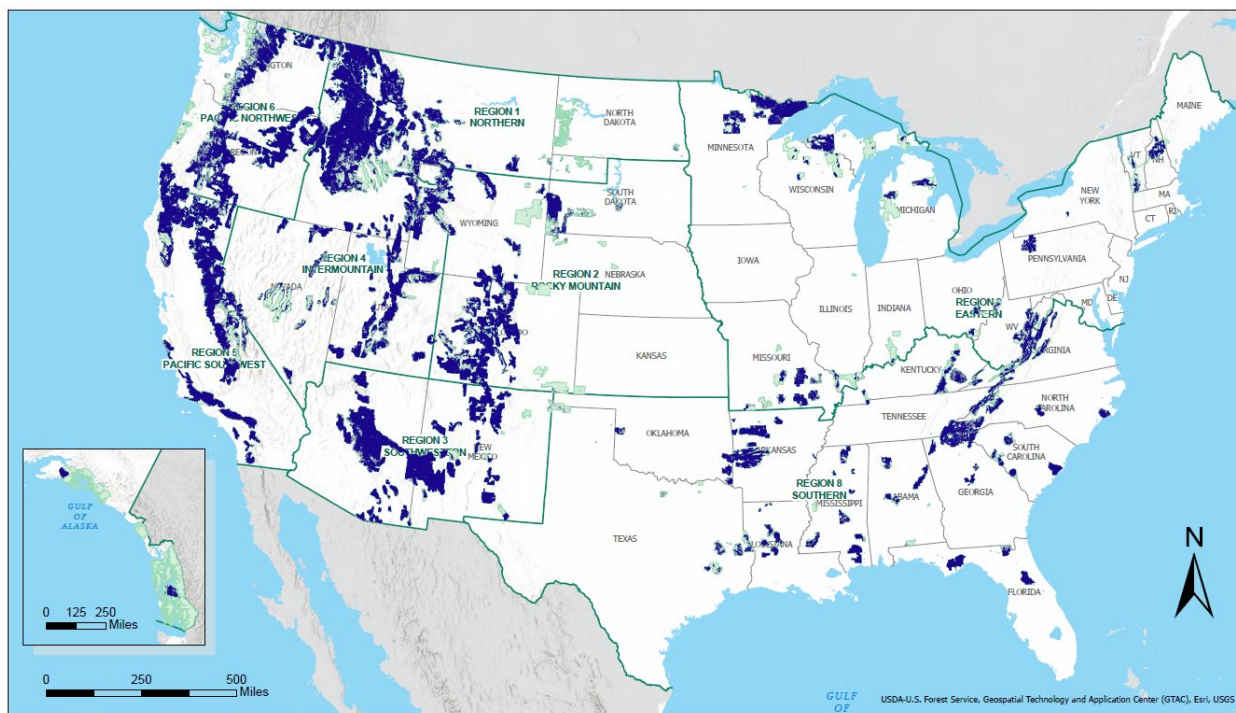
COMPLETING CONSULTATION PRIOR TO IMPLEMENTATION

If consultation was completed prior to implementation, save all relevant documents in the project record. If the consultation resulted in changes to the proposed action or the inclusion of additional conservation measures be sure those items are brought forward into any relevant decision documents, contracts, permits, etc.

COMPLETING CONSULTATION POST-EMERGENCY ACTIONS

If consultation is not completed prior to undertaking the project, the originating unit must complete consultation pursuant to 50 CFR 402.05(b) as soon as practicable after the emergency is under control. You should issue a letter/email requesting completion of emergency consultations to the consulting Service office. Work with the Services to determine if updates to the preliminary BA may be required in addition to providing the information on the following: (1) a description of the emergency actions taken; (2) a justification for the expedited consultation; and (3) an evaluation of the impacts of the emergency response on affected species and critical habitats, including documentation of how the Services' conservation measure recommendations were implemented and the results of implementation in minimizing and avoiding impacts to listed species and critical habitats. Be aware that emergency consultations may be a lower priority for the FWS to complete compared to projects that have not yet been implemented.

In the event the Executive Orders are rescinded/replaced/revised, emergency consultations that were not previously concluded should move towards completion at that time pursuant to 50 CFR 402.05(b). Consultation is not complete until a letter of concurrence, a BiOp, or an equivalent correspondence is received from the Services indicating the consultation has been closed out.



Forest Health and Fuels Emergency Situation Determination (FHFESD) lands

Administrative
Forest Boundaries
FHFESD lands

Date: 3/28/2025

Figure 1. USDA Secretary's Emergency Situation Determination Area.